

 mPowerRatings Ensuring Change through Empowerment	Document number: AD 004
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HANDLING OF COMPLAINTS, APPEALS AND DISPUTES (CAD)	

1. Introduction

The purpose of this document is to communicate mPowerRatings' process of handling client and third party appeals, complaints and disputes.

2. Purpose and scope

This document is applicable to all Measured Enterprises (ME) verified by mPowerRatings and all clients of the measured enterprise (Users of the BEE Verification). There may from time to time be instances of appeal and/or complaint but a distinction needs to be drawn between the differences.

- an appeal is against a technical issue relating to the score
- a complaint relates to procedure
- a dispute relates to finding closure to the appeal or complaint should either party not accept the outcome.
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mPowerRatings acknowledges that there is a possibility that the client might wish to appeal their rating and that they have the right to do so within reason. Similarly, should a client feel dissatisfied in any way with the verification process, then this too needs to be assessed by mPowerRatings with the view to ensuring that there is quick and mutually agreeable resolution, using at all times objective and impartial staff. Complaints can be lodged at any stage in the process as long as this is done using the requisite documentation. However, an appeal against a Verified Score will need to be lodged at the end of the process once the client has received confirmation of their BEE Scorecard from mPowerRatings. This procedure is in place so that any such appeals or complaints can be dealt with timeously with decisive sensitivity by mPowerRatings so as to ensure that there is successful resolution, that the verification can be concluded, and so that the client and stakeholders remain confident of the process. Where complaints are received from a measured entity (client of mPowerRatings), or from users of the BEE verification of a measured entity, the complaints process is subject to the requirements for confidentiality as they relate to the complainant and to the subject matter of the complaint.

3. Process of Resolution of Complaints

Once the rating has been completed, a ratings certificate will be issued together with a Client Satisfaction Survey form (Form F 040). Should a complaint arise the complaint must be directed to the Customer Service Centre in the form of the Client Satisfaction Survey form, either via e-mail or post.

In the case of complaints, where the complainant is the client, the client should attempt to resolve the complaint through the usual communication channels with mPowerRatings.

MPowerRatings may reject any complaints that do not comply with the prescribed format. Any decision by mPowerRatings to reject a complaint on the basis that it does not comply with the prescribed format or that the subject matter of the complaint is not relevant in terms of the policy as referred to in the Standard Terms and Conditions, will be communicated to the Complainant in writing.

Anonymous complaints shall be summarily rejected.

When complaints are received telephonically, the mPowerRatings Customer Service Centre will forward the Complaints form to the complainant.

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Where relevant, complaints lodged shall be dealt with in accordance with the Protected Disclosures Act, 2000 (Act No 26 of 2000) and in terms of the corresponding policy and procedures of mPowerRatings.

It should be noted that complaints may contain elements of more than one category of complaints as listed above. In such instances, the complaint should be dealt with in accordance with each of the relevant procedures.

mPowerRatings will ensure that complaints are dealt with in a professional, honest, and impartial manner.

Resolution of complaints:

After submission of a complaint, the mPowerRatings Customer Service Centre shall, within a period of five working days, acknowledge submission of the complaint to the Complainant.

After acknowledgement of a complaint as described above, the department or individual of MPowerRatings that the complaint refers to shall attempt to resolve the complaint to the satisfaction of all parties involved.

Complaints of higher seriousness will be referred to the legal services component for an opinion, as well as to the Director for appropriate action.

In the event that a complaint is received that does not pertain to the subject matter of complaints requirement as stated in the terms and conditions, mPowerRatings shall notify the client in writing or via e-mail of this fact, and of the appeal procedure as prescribed below, within 5 working days after ratification of the decision by mPowerRatings.

The department or individual to whom the complaint refers shall, within 10 working days, report findings with regard to the resolution of the complaint, or his or her failure to do so.

If the respondent is of the opinion that the complaint is frivolous or unfounded or in the event that the respondent disagrees with the complainant, the respondent shall declare a dispute with the complainant and notify the Complaints Department. The Complaints Department shall submit the complaint and the background and reasons for the declaration of a dispute by the respondent to the Complaints Committee for ratification. In the event that the Complaints Committee decides not to ratify the declaration of a dispute, the complaint shall be resolved by the Complaints Department.

If the respondent is unable to resolve the complaint within the allocated 10 working days, the Complaints Department may approve such a further time period as it may deem necessary for the resolution of the complaint, or it may issue an instruction or other directive in order to resolve the complaint.

In the event of resolution of the complaint within the specified 10 working days, or whatever period thereafter as approved by the Complaints Department, the Customer Service Centre shall notify the complainant of the resolution thereof, after ratification by the Complaints Department. In the event that the Complaints Committee is of the opinion that the complaint is frivolous or unfounded or in the event that the Complaints Department disagrees with the complainant and the resolution of the complaint by the respondent, the Complaints Department shall declare a dispute with the complainant.

In all instances referred to above, mPowerRatings shall notify the complainant of the decision of the Complaints Department within 5 working days, and advise the complainant of the appeal procedure. Record of all remedial actions taken will be recorded in writing.

This section should be read in conjunction with the Complaints section above insofar as it relates to and follows onto the Complaints process

The Verified Entity has the opportunity to appeal the findings of their report. This can be done within five days of receiving the Preliminary Verification Report. The appeal needs to be in writing, addressed to the Verification Manager in charge, and should be resolved or addressed, as per the company policy on appeals, within 30 days of receipt.

Where mPowerRatings appoints an external source as an expert, or otherwise as it deems necessary, in order to give an opinion on the appeal, mPowerRatings is responsible for all decisions at all levels of the appeals-handling process.

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Investigation of, and decisions on appeals shall not result in any discriminatory actions against the appellant.

The appeals-handling process includes the following elements and methods:

- an outline of the process for receiving, validating and investigating the appeal, and for deciding what actions are to be taken in response to it, and
- a procedure for tracking and recording appeals, including the actions undertaken to resolve them.

Resolution of Appeals:

As soon as the Verification Manager receives an appeal, he or she shall acknowledge receipt of the appeal to the appellant, detailing the procedures to be followed.

A Verification Manager (respondent) completely independent from any persons previously involved in the initial verification assessment will be appointed to carry out the appeals process.

The respondent will assess and validate the appeal, formulate an approach to investigate the appeal and gather such additional evidence as may be required to make an informed decision.

Any delays in the process will be communicated to all parties concerned, including the appellant.

The respondent shall, within 10 working days of having received the appeal, report back to the Director of mPowerRatings, his or her findings or failure to do so.

In the event that the appeal is not brought to conclusion by the respondent, the Director shall appoint a committee to further investigate the matter and to reach a conclusion.

Where a decision regarding an appeal is reached, formal notice of the end of the process will be communicated to the appellant.

A successful appeal will be recorded and notice will be given to the appellant, and an instruction issued to adjust the Report and BEE certificate.